

JEFFCO's demurrers are overruled.

MARIA ELENA JIMERSON vs. VACAVILLE UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU25-05542

- 1). Demurrer to Complaint; and
- 2). Motion to Strike Punitive Damage Allegations in Complaint

TENTATIVE RULING

On May 21, 2026, the Parties entered into a stipulation to dismiss all individual defendants, the second cause of action alleging harassment, and the claim for punitive damages. As such, the Defendant's demurrer and motion to strike as to these claims are moot.

As to the balance of the demurrer of remaining defendant VACAVILLE UNIFIED SCHOOL DISTRICT ("VUSD") to the remaining five causes of action alleged against it in the complaint is overruled.

As to the 1st cause of action for disability discrimination, the prima facie elements are a disability of a person otherwise qualified, causing him/her to suffer an adverse employment action, because the employer knew of the disability and harbored discriminatory intent. Avila v. Continental Airlines, Inc. (2008) 165 Cal.App.4th 1237, 1246.

The complaint alleged that VUSD's HR director terminated Plaintiff's employment [¶14], which is clearly an adverse employment action. Other paragraphs of the complaint [¶¶13a, 13c, 13d, 13e] allege that Plaintiff provided Defendants with doctors notes and work restrictions (regarding her herniated discs, alleged with particularity in ¶¶13a and 13d). Paragraphs 13f and 13g allege that Plaintiff requested a transfer, and was denied this and never offered any reasonable accommodation. Paragraph 22 alleged that Plaintiff's perceived/actual disability and/or other protected characteristics "were substantial motivating reasons" in VUSD's decision to terminate her employment.

As to the 3rd cause of action for retaliation, the elements include that the plaintiff engaged in protected activity, and suffered an adverse employment action as a result. Yanowitz v. L'Oreal USA, Inc. (2005) 36 Cal.4th 1028, 1042.

Protected activity is defined as opposing any practices forbidden under FEHA. Government Code §12940(h) makes actionable:

For any employer, labor organization, employment agency, or person to discharge, expel, or otherwise discriminate against any person because the person has opposed any practices forbidden under this part or because the

person has filed a complaint, testified, or assisted in any proceeding under this part.

It is enough that an employee complain informally to a supervisor that he or she is being discriminated against, if that employee later suffers an adverse employment action that they claim was made because they complained.

An employee's formal or informal complaints to a supervisor regarding unlawful discrimination is a "protected activity" and actions taken against the employee after such complaints may constitute retaliation. It is immaterial whether the employee's complaints were well-founded. "Protected activity" includes opposing conduct that the employee reasonably and in good faith believed to be discriminatory, whether or not the conduct is ultimately deemed to violate the FEHA. [Wawrzenski v. United Airlines, Inc (2024) 106 CA5th 663, 699-700, 327 CR3d 245, 279—bringing concerns to manager on multiple occasions sufficient to constitute protective activity; formal complaint through official channels not required; Passantino v. Johnson & Johnson Consumer Products, Inc. (9th Cir. 2000) 212 F3d 493, 506-507 (construing Title VII retaliation claim)]. California Practice Guide (The Rutter Group), Employment Litigation, §5:1489.

Plaintiff's complaint alleges that she requested a reasonable accommodation to transfer positions in March 2022 [¶13f]; when effectively denied the transfer, had to use her sick leave to recover from being forced to work in her current position [¶13f]; had taken three months off work, often unpaid, to recover [¶13g]; told an HR employee who called that she was not home by choice, but because she requested reasonable accommodations due to her medical condition and restrictions and was denied [¶13g]; and was thereafter called in to a meeting where the HR director "terminated Plaintiff's employment stating that the safety and protection of school children could not be ensured by Plaintiff (if she were to return to her job)" [¶14].

As to the 4th cause of action for failure to provide reasonable accommodation, and the 5th cause of action for failure to engage in the interactive process:

Disability discrimination law imposes a duty on an employer to engage in an interactive process in good faith when an employee makes the employer aware of the disability and the limitation(s) caused by the disability. The employer must then offer an accommodation if reasonable, and has a continuing obligation if aware that an initial accommodation is failing and a further accommodation is needed. Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1013.

Because the employer is in a better position than the employee to identify and evaluate possible alternatives, it is the employer's responsibility during the interactive process to find any reasonable alternative(s). Although the plaintiff's complaint need not allege what reasonable alternative(s) could have been offered, by time of trial after discovery the plaintiff would have the burden of proving that one existed but was not offered by the employer. Id. at 1018-1019.

Plaintiff's complaint alleged that "Defendants were aware (in 2021) that her doctor told Plaintiff to avoid heavy lifting and repetitive, strenuous movements" but refused to accommodate Plaintiff [¶13c]; in March 2022 Plaintiff provided Defendants with her work restrictions (no standing for prolonged periods of time and no lifting heavy objects) from her doctor, and provided Defendants with her work restrictions and doctors' notes each time she visited the doctor" [¶13e]; that in March 2022 Plaintiff requested a reasonable accommodation to transfer positions within VUSD" and "was effectively denied this accommodation as VUSD failed to provide any response despite Plaintiff's repetitive requests" and thus had to work through the pain and take sick leave to recover periodically [¶13f]; and that by March 2023 "Plaintiff was still denied accommodation of any kind", causing her to have to take off work "often unpaid time, to recover" [¶13g]; and then, was called in to a meeting in March 2023 where she was informed by VUSD's HR director to return to work when fully capable, "without ever granting or acknowledging any kind of accommodation including leave of absence" [¶13h].

As to the 6th cause of action for failure to prevent:

Government Code §12940(k) identifies as actionable "For an employer, labor organization, employment agency, apprenticeship training program, or any training program leading to employment, to fail to take all reasonable steps necessary to prevent discrimination and harassment from occurring."

A failure to prevent cause of action is dependent upon a claim of actual discrimination (or harassment). Scotch, supra, 173 Cal.App.4th at 1021.

With the court overruling the demurrer to the 1st cause of action for disability discrimination, it must also overrule the demurrer to this failure to prevent cause of action.

Per CRC 3.1320(g), VUSD has 10 days to file its answer to the remainder of the complaint, or its default may be requested and entered.

JEFFREY BRIAN SHAW vs. ADIREN MARKUS VILLANUEVA
Case No. CU25-06634

Plaintiff's Motion to Compel Defendant's Further Responses to Special Interrogatories and Requests for Production

TENTATIVE RULING

The Parties are to appear.
